

Amendment No. 1 to HB0295

Kumar
Signature of Sponsor

AMEND Senate Bill No. 44*

House Bill No. 295

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

63-1-177.

(a) As used in this section:

- (1) "Commissioner" means the commissioner of health;
- (2) "Department" means the department of health; and
- (3) "Doula services" means a service that provides continuous emotional and physical support throughout labor and birth and intermittently during the prenatal and postpartum periods.

(b) Using the findings and recommendations of the doula services advisory committee, as described in § 63-15-103, the commissioner shall establish by rule a process by which the department issues a verification of certification to a person who has demonstrated the following by providing proof of completion of a doula training program recognized by the commissioner:

- (1) An understanding of basic anatomy and physiology as related to pregnancy, the childbearing process, breastfeeding, and the postpartum period;
- (2) The capacity to employ different strategies for providing emotional support, education, and resources during the perinatal period;
- (3) Knowledge of and the ability to assist families with utilizing a wide variety of nonclinical labor coping and physical comfort strategies;

(4) An awareness of strategies to foster effective communication between clients, their families, support services, and healthcare providers; and

(5) Knowledge of community-based, publicly and federally funded, and clinical resources available to the client for any need outside the doula's scope of practice.

(c) In addition to the rules promulgated pursuant to subsection (b), the commissioner shall promulgate rules to effectuate this section, including, but not limited to, rules for the collection of fees and rules regarding the imposition of discipline, including the assessment and collection of fines.

SECTION 2. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.